

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Lori E. Pegg, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

June 26, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.E.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scsccourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	25CV474537	<i>Carissa Barragan</i> <i>v.</i> <i>Janet Mansouri Reyhanabad,</i> <i>et al.</i>	Order on Motion by Plaintiff's counsel Thomas Reynolds of Valero Law Group to be Relieved as Counsel for Plaintiff Carissa Barragan Plaintiff's counsel Thomas Reynolds of Valero Law Group moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Plaintiff Carissa Barragan. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. The Court will sign and file the Proposed Order that has already been prepared by Plaintiff's and filed with this Motion. SO ORDERED.

9:01 2	2005-1-CV-035295	<i>Sharon Biagi v. Malcolm Durham</i>	Hearing: Order of Examination On August 13, 2025, the Court Ordered Defendant Judgment Debtor Malcolm Durham to appear personally in Department 16 to give information regarding a money judgment against him on September 17, 2025 at 9:01 AM in Department 16 (the “Order of Examination”), which hearing was continued to January 23, 2026 at 9:01 AM in Department 16 for this Examination. Next, at the January 23, 2026 hearing, at the request of Defendant’s counsel, the Court agreed to continue this Examination until June 26, 2026 to allow the Court to first resolve Defendant’s Motion to Vacate the Renewal of Judgment then set for hearing on May 1, 2026. Next, on March 6, 2026, Defendant filed a Notice of Appeal of the Court’s Order of December 17, 2025 Granting Motion to Charge Defendant’s Membership Interest in Vida Capital Group. Now because issues now on appeal before the Sixth Appellate District substantially overlap with issues that would be covered during this Examination, it is appropriate to stay this Examination until after the appeal is complete. Accordingly, the Court orders this Hearing for Examination STAYED until the appeal is complete. After the appeal is complete, Plaintiff Judgment Creditor may serve a Notice resetting this Hearing for Examination in Department 16. SO ORDERED.
9:01 3			

9:01 4			
9:01 5			
9:00 <u>1</u>	23CV418396	<i>Dottie Melman v. Harman Management Corporation, et al.</i>	Order on Defendant's Motion for Order Compelling Plaintiff's Independent Medical Examination of Lumbar Spine Finding Good Cause, Defendant's Motion for Order Compelling Plaintiff's Second Independent Medical Examination of Lumbar Spine is GRANTED as unopposed. See Line 1 below for complete tentative ruling.
9:00 <u>2</u>	23CV423796	<i>Troy Parker v. County of Santa Clara, et al.</i>	Order on Defendant County of Santa Clara's Motion for Summary Judgment or, in the alternative, Summary Adjudication DISCLOSURE: The court discloses that her spouse is an attorney in the Office of the County Counsel. The court has no information that her spouse has worked on this case. The court also discloses that from 2012 to 2013 she was the Acting County Counsel in the Office of the County Counsel. These facts do not impact the Court's ability to be fair and impartial in this case. See Line 2 below for complete tentative ruling.

9:00 3	24CV442489	<i>John Diep, M.D., et al.</i> <i>v.</i> <i>Phu Vo, et al.</i>	Order on Defendant Vo's Motion to Strike Plaintiff's Complaint under the California Anti-SLAPP statute See Line 3 below for complete tentative ruling.
9:00 4	24CV445397	<i>Terry Kwong, et al.</i> <i>v.</i> <i>Elaine Yang, et al.</i>	Order on Plaintiff Terry Kwong's Motion to Compel Further Amended & Verified Responses to Discovery Requests from Defendant Elaine Yang, and for Sanctions Terry Kwong's Motion to Compel Further Amended and Verified Responses to Form Interrogatories, Requests for Admissions, Requests for Production of Special Interrogatories from Defendant/Cross-Complainant Elaine Yang has been continued by stipulation and court order to July 31, 2026 at 9:00 a.m. in Department 16.) SO ORDERED.

9:00 5	25CV468257	<i>Argent Investments LLC</i> <i>v.</i> <i>Ye Rang Choi, et al.</i>	Order on Cross-Defendants Argent Investments, LLC and Stanley Woo’s Motion to Strike the First Amended Cross-Complaint under Code of Civil Procedure Section 425.16. In light of the issues now on appeal before the Sixth Appellate District because of the filing of the Notice of Appeal of the Order Vacating the Default Judgment, the Court STAYS this case until the appeal is complete. Accordingly, the Court orders this Hearing on Cross-Defendants’ Motion to Strike STAYED until the appeal is complete. After the appeal is complete, Cross-Defendants may serve a Notice resetting this Hearing on Cross-Defendants’ Motion to Strike in Department 16. SO ORDERED.
9:00 6	25CV474454	<i>Jason S. Fox, et al.</i> <i>v.</i> <i>Shelita Law, et al.</i>	Order on Demurrer of Defendant Shelita Law to the Complaint of Plaintiffs In light of the March 18, 2026 Order Staying this entire civil action pending completion of arbitration, Defendant Shelita Law’s Demurrer is likewise STAYED until the arbitration is complete. After the arbitration is complete, Defendant Shelita Law may serve a Notice on all parties resetting this Hearing on Defendant Shelita Law’s Demurrer in Department 16. SO ORDERED.

9:00 Z	25CV476451	Darnell Johnson v. Narinder Bains, et al.	Order on Plaintiff's Motion for Immediate, Sheriff-Supervised Access to the Residence On November 6, 2025, Plaintiff Darnell Johnson moved <i>ex parte</i> for an Order providing him with immediate, sheriff-supervised access to his residence and belongings that he claims he has been deprived of. Defendant Gary W. Sullivan opposed the <i>ex parte</i> request and Judge Parrett denied the <i>ex parte</i> on November 10, 2025. On February 9, 2026, Plaintiff filed a new noticed motion seeking the same relief as his <i>ex parte</i> motion. That motion is set for September 16, 2026 at 9:00 a.m. in Department 16. The court finds this motion is not properly before the court today and vacates today's hearing. SO ORDERED.
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Line 1

Case Name: *Dottie Melman v. Harman Management Corporation, et al.*

Case No.: 23CV418396

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Gunter 183, Inc. ("Defendant") moves the Court for an Order Compelling Plaintiff's Independent Medical Examination of the Lumbar Spine. Notice of Motion (the "Motion") at 1:22-24 (filed: Jan. 20, 2026).

The Motion came on for hearing on June 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Before the Court is Defendant Gunter 183, Inc.’s (“Defendant”) motion for an order compelling Plaintiff Dottie Melman (“Plaintiff”) to submit to a second independent medical evaluation. Pursuant to California Rules of Court, rule 3.1308, the Court issues its tentative ruling as follows:

I. BACKGROUND

This is a personal-injury action arising from Plaintiff’s alleged slip and fall at a fast-food restaurant located at 2200 Patterson Road, Riverbank, California. Plaintiff alleges she slipped on accumulated liquid on the floor and suffered bodily injuries.

Defendant previously obtained an independent medical evaluation of Plaintiff on June 17, 2024. After that evaluation, Plaintiff underwent lumbar spine surgery. Defendant now seeks a second independent medical evaluation based on Plaintiff’s later discovery responses, which identify continuing or worsening complaints involving the lumbar spine, lower-extremity numbness and tingling, neuropathy, mobility restrictions, hip complaints, and an anticipated left-hand condition.

II. DEFENDANT’S MOTION FOR A SECOND INDEPENDENT MEDICAL EVALUATION

A. Legal Standard

In a personal-injury action, a defendant may demand one physical examination of the plaintiff, subject to the statutory requirements governing the time, place, manner, conditions, scope, and nature of the examination. (Code Civ. Proc., § 2032.220, subds. (a), (c).)

A party seeking a further physical examination must obtain leave of court by motion and must show good cause. (Code Civ. Proc., §§ 2032.310, subd. (a), 2032.320, subd. (a).) Good cause requires specific facts justifying the discovery and a showing that the inquiry is relevant to the subject matter of the action. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840.)

The examination must be limited to the physical condition actually placed in controversy. (Code Civ. Proc., § 2032.020, subd. (a).) In a personal-injury action, the examination must be directly related to the specific injury or condition that is the subject of the litigation. (*Roberts v. Superior Court* (1973) 9 Cal.3d 330, 337.)

An order granting a physical examination must specify the person who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination. (Code Civ. Proc., § 2032.320, subd. (d).)

B. Discussion

1. Good Cause Exists for a Second Independent Medical Evaluation

Defendant has shown good cause for a second independent medical evaluation. Plaintiff's physical condition is directly in controversy because she seeks recovery for personal injuries arising from the alleged fall. (Compl., ¶¶ 16–18; Code Civ. Proc., §§ 2032.020, subd. (a), 2032.220, subd. (a).)

Although Defendant previously obtained an independent medical evaluation on June 17, 2024, that evaluation occurred before Plaintiff's July 2024 lumbar spine surgery. (Def.'s Mem., pp. 2–3 & Exs. 2–3.) Plaintiff's later discovery responses identify post-surgical low-back complaints, lower-extremity numbness and tingling, including symptoms in the left leg and feet, lower-extremity neuropathy, mobility restrictions, hip complaints, and an anticipated left-hand condition. (Stevens Decl., ¶ 2; Def.'s Separate Statement, pp. 2–5.)

These facts are sufficient to establish good cause for a further physical examination, i.e., the requested second independent medical evaluation, directed to Plaintiff's claimed post-evaluation and post-surgical conditions. (Code Civ. Proc., §§ 2032.310, 2032.320; *Vinson*, supra, 43 Cal.3d at p. 840.) The requested evaluation is relevant to Plaintiff's claimed injuries, causation,

the nature and extent of Plaintiff's alleged damages, and Defendant's ability to evaluate and respond to Plaintiff's claimed worsening or newly identified conditions.

2. Scope of the Evaluation

The Court must ensure that the examination remains tied to the conditions Plaintiff placed in controversy. (Code Civ. Proc., § 2032.020, subd. (a); *Roberts*, supra, 9 Cal.3d at p. 337.) The record supports an examination concerning Plaintiff's lumbar spine, post-surgical lumbar condition, lower-extremity neurological symptoms, gait and mobility limitations, hip complaints, and claimed left-hand condition. The record does not show that Plaintiff has placed a cervical-spine injury in controversy. Accordingly, the examination shall not include cervical-spine range-of-motion testing, Hoffman's testing, or a generalized upper-extremity neurological workup, except to the limited extent necessary to evaluate Plaintiff's claimed left-hand condition.

Defendant identifies the examiner as Luke Macyzyn, M.D. ("Dr. Macyzyn"), a neurological surgeon of the spine, and identifies the proposed date, time, place, expected duration, and examination procedures. (Notice of Mot., pp. 2–3; Stevens Decl., ¶ 4.) The examination shall be limited to Plaintiff's claimed lumbar spine condition, post-surgical lumbar condition, lower-extremity radiculopathy or neuropathy, lower-extremity numbness and tingling, gait and mobility limitations, hip complaints to the extent still claimed, and the claimed left-hand condition allegedly resulting from compensating for right-arm limitations.

The permitted procedures shall include visual inspection, palpation, lumbar range-of-motion testing, lower-extremity motor-strength testing, lower-extremity sensory testing, lower-extremity deep-tendon-reflex testing, clonus testing, gait testing, and related physical or neurological examination procedures reasonably necessary to evaluate the lumbar spine and lower-extremity conditions identified above.

As to the claimed left-hand condition, the examination may include visual inspection,

palpation, hand and wrist range-of-motion testing, grip-strength testing, sensory testing, motor-strength testing, and ligament or functional testing reasonably necessary to evaluate Plaintiff's claimed left-hand injury. Any upper-extremity testing shall be limited to the left hand, wrist, and related function, and shall not include a generalized upper-extremity neurological examination unrelated to the claimed left-hand condition.

Dr. Macyzyn may review, interpret, and correlate Plaintiff's symptoms and examination findings with Plaintiff's existing diagnostic studies and medical records, including existing x-rays, MRIs, and surgical records concerning the lumbar spine and claimed left-hand condition.

No cervical-spine range-of-motion testing, Hoffman's testing, generalized upper-extremity neurological testing, new x-rays, MRIs, EMG/nerve-conduction studies, blood tests, injections, or other diagnostic procedures shall be performed. The examination shall not include any painful, protracted, intrusive, or invasive testing, and shall not include a mental examination. The evaluation shall last approximately 30 to 45 minutes.

3. Location and Travel Expenses

The evaluation is scheduled to occur in Encino, California. Plaintiff is alleged to reside in Ceres, California. (Compl., ¶ 1.) The Court finds good cause for the travel involved based on the specialized spine-neurosurgical nature of the proposed examination, Plaintiff's claimed post-surgical lumbar condition and neurological complaints, Dr. Macyzyn's identified qualifications, and Defendant's agreement to pay reasonable travel expenses between Plaintiff's residence area and Encino, including any reasonably necessary overnight stay and meals. (Code Civ. Proc., § 2032.320, subd. (e).)

Defendant shall advance Plaintiff's reasonable travel expenses and costs for the examination, including reasonable transportation expenses between Plaintiff's residence area and Encino, and reasonable lodging and meals if an overnight stay is reasonably necessary.

As Defendant has shown good cause for a second independent medical evaluation directed to Plaintiff's claimed post-evaluation and post-surgical conditions, Defendant's motion is GRANTED, subject to the scope and conditions set forth above.

SO ORDERED.

Date: June 26, 2026

Hon. Lori E. Pegg
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Troy Parker v. County of Santa Clara, et al.*

Case No.: 23CV423796

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant County of Santa Clara ("County") moves for Summary Judgment or, in the alternative, Summary Adjudication in favor of the County and against Plaintiff Troy Parker under Code of Civil Procedure Section 437c on the grounds that the action has no merit, there is no triable issue of material fact, and the County is entitled to judgment as a matter of law. Notice of Motion (the "Motion") at 1:22-28 (filed: Oct. 22, 2025).

The Motion came on for hearing on June 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Pursuant to Code. Civ. Proc. § 437c, Defendant, County of Santa Clara ("County") moves for summary judgment or, in the alternative, summary adjudication against Plaintiff's first amended complaint ("FAC") on the following grounds:

- Plaintiff's causes of action for discrimination and retaliation fail because Plaintiff did not suffer any adverse employment action.
- Plaintiff's causes of action for discrimination also fail because the County did not act with any discriminatory motive.
- Plaintiff has not pled causes of action for failure to engage in the interactive process or failure to provide reasonable accommodation, but even if he had, those claims would fail because the County in fact accommodated Plaintiff.
- Plaintiff's retaliation cause of action also fails because Plaintiff conceded that he did not engage in any protected activity.
- Plaintiff's hostile work environment claim fails because Plaintiff's allegations are insufficient to show that a hostile work environment existed, and because it is time-barred.
- Plaintiff's failure to prevent discrimination, harassment, or retaliation claim fails because Plaintiff has not proven discrimination, harassment, or retaliation claim.

(Notice of Motion at 2:1-15)

The Motion came on for hearing on June 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

On May 30, 2016, Plaintiff began his employment with the County as a Building Inspector. On February 5, 2020, Plaintiff sustained injuries during the course and scope of his employment. (FAC ¶¶ 9, 15)

During his recovery from his injuries, Plaintiff was required to work on modified duties as prescribed by his medical providers. Plaintiff was constantly harassed by his supervisors and HR employees inquiring, at least once a month, about when he would be able to work without modifications. On one occasion Plaintiff was informed that he should just retire. (FAC ¶¶ 16, 17, 18.) 36, 55)

County failed to provide reasonable accommodation and terminated Plaintiff's employment on June 24, 2023,¹ in retaliation for informing management about the continued hostile work environment. (FAC ¶¶ 36, 55)

Plaintiff initiated this action on October 3, 2023, and amended his complaint on November 29, 2023, alleging causes of action for (1) Race discrimination; (2) Disability discrimination; (3) Age discrimination; (4) Retaliation; (5) Hostile work environment; and (6) Failure to prevent discrimination, harassment, or retaliation.

¹ Parties refer to a termination date of June 24, 2022, throughout their motion, opposition, submitted evidence, and separate statement of undisputed material facts. Therefore, the Court considers termination date of June 24, 2023, to be a typographical error.

II. Legal Standard for Summary Judgment

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code. Civ. Proc. § 437c, subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code. Civ. Proc. § 437c(p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence that is admissible under the rules of evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

"On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial." (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.) Further, "the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court's evaluation of credibility. [Citation.]" (*Id.* at p. 840.)

III. Applicable Law to FEHA Discrimination Claims

In evaluating claims of discrimination under FEHA, California courts apply the burden-shifting approach set forth in *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792." (*Martin v. Board of Trustees of California State University* (2023) 97 Cal.App.5th 149, 161(*Martin*); see *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 214 (*Harris*); *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 354 (*Guz*).) "Under this approach, if

the plaintiff establishes a prima facie case supporting his or her discrimination claim, the burden of production shifts to the employer to rebut the presumption of discrimination by offering a legitimate, nondiscriminatory reason for the adverse employment action.” (*Martin, supra*, at p. 161; see *Harris, supra*, at p. 214; *Guz, supra*, at pp. 355–356.) This first step of the McDonnell Douglas framework “is designed to eliminate at the outset the most patently meritless claims, as where the plaintiff is not a member of the protected class or was clearly unqualified, or where the job [the plaintiff] sought was withdrawn and never filled. [Citations.] While the plaintiff’s prima facie burden is ‘not onerous’ [citation], [the plaintiff] must at least show “actions taken by the employer from which one can infer, if such actions remain unexplained, that it is more likely than not that such actions were ‘based on a [prohibited] discriminatory criterion.’”” (*Guz, supra*, at pp. 354–355; accord, *Department of Corrections & Rehabilitation v. State Personnel Bd.* (2022) 74 Cal.App.5th 908, 924.)

“An employer may meet its initial burden in moving for summary judgment by presenting evidence that one or more elements of a prima facie case are lacking, or the employer acted for a legitimate, nondiscriminatory reason.” (*Martin, supra*, at p. 162; see *Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal.App.5th 1, 32.) “A legitimate, nondiscriminatory reason is one that is unrelated to unlawful bias and, if true, would preclude a discrimination finding. [Citation.] ‘[I]f nondiscriminatory, [the employer’s] true reasons need not necessarily have been wise or correct.’” (*Martin, supra*, at p. 162; see *Guz, supra*, at p. 358.)

“If the employer puts forth a legitimate basis for the adverse employment action, the burden of production shifts to the plaintiff to present evidence creating a triable issue of fact showing the employer’s stated reason was a pretext for unlawful animus in order to avoid summary judgment.” (*Martin, supra*, at p. 162.) “In addition, FEHA does not require proof that discriminatory animus was a ‘but for’ cause of an adverse action, only that it was a ‘substantial motivating factor.’ [Citation.] ‘Still, there must be evidence supporting a rational inference that intentional discrimination, on grounds prohibited by the statute, was the true cause of the employer’s actions.’” (*Martin, supra*, at p. 162; *Harris, supra*, at pp. 229–232; *Guz, supra*, at p. 361.) Ultimately, “an employer is entitled to summary judgment if, considering the employer’s innocent explanation for its actions, the evidence as a whole is insufficient to permit a rational inference that the employer’s actual motive was discriminatory.” (*Guz, supra*, at p. 361; see *Martin, supra*, at p. 162.)

If a plaintiff can demonstrate “direct evidence of discriminatory animus,” then the burden-shifting analysis does not apply. (*DeJung v. Superior Court* (2008) 169 Cal.App.4th 533, 550; see *Trop v. Sony Pictures Entertainment, Inc.* (2005) 129 Cal.App.4th 1133, 1144.) “Direct evidence is evidence which, if believed, proves the fact of discriminatory animus without inference or presumption.” (*DeJung*, at p. 550; see *Zamora, supra*, at p. 35.) Because “direct evidence of intentional discrimination is rare,” the plaintiff must usually prove discrimination circumstantially. (*Khoiny v. Dignity Health* (2022) 76 Cal.App.5th 390, 398; see *Department of Corrections & Rehabilitation, supra*, 74 Cal.App.5th at p. 923.)

IV. Evidentiary Objections

County objects to Plaintiff's Opposition (response) to its Separate Statement of Undisputed Material Facts ("SSUMF") on the grounds that the responses are improper arguments and fail to admit or dispute material facts; fail to present additional facts supported by evidence; and fail to respond to material facts in violation of Rules of Court, Rule 3.1350.

County's objection is not objection to evidence, but rather to Plaintiff's contentions in opposing its separate statement. Therefore, County's objections are OVERRULED.

V. Analysis

A. Race & Age Discrimination – First and Third Causes of Action

Plaintiff expressly concedes summary adjudication of his race discrimination (first cause of action) and age discrimination (third cause of action) in his opposition. Plaintiff states:

"Plaintiff does not oppose summary adjudication as to his independent theories of race discrimination and age discrimination Accordingly, Plaintiff's opposition is directed toward the triable issues relating to disability discrimination, failure to accommodate, failure to engage in the interactive process, retaliation, hostile work environment, and failure to prevent FEHA violations"

(Opposition at 9:18-27)

Based on this concession, County's motion for summary adjudication as to the first and third cause of action is GRANTED.

C. Disability Discrimination – Second Cause of Action

Under the FEHA, it is unlawful for an employer to discriminate against an employee because of the employee's physical disability. (Gov. Code § 12940(a); *Cuiellette v. City of Los Angeles*, (2011) 194 Cal. App. 4th 757, 765-766.) To establish a claim for discrimination in violation of FEHA, Plaintiff must generally prove he (1) was a member of a protected class, (2) was qualified for the position he sought or was performing competently in the position he held, (3) suffered an adverse employment action, such as termination or demotion, and (4) some other circumstance suggesting discriminatory motive. (See, *Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 355)

County contends Plaintiff's disability discrimination claim fails because (1) he did not experience any adverse employment action, and (2) Plaintiff cannot show County acted with a discriminatory motive. In support of its position county submits evidence showing:

- Plaintiff was injured on February 5, 2020, while performing an inspection and was unable to work for approximately three months. Prior to his return to work on May 4, 2020, his provided medical document stated Plaintiff was able to work his full shift with the restriction of mostly seated assignments. From May 4, 2020, to October 6, 2021, Plaintiff

was allowed to return to work his full shift with the only restriction for seated assignment. (Sousa Decl. Ex. F at pp. 7-21).

- County accommodated Plaintiff's work restriction by limiting his assignments to computer-based tasks that he could perform while seated. Given the March 2020 COVID shelter-in-place order, Plaintiff was allowed to work remotely from his home. On April 28, 2020, Mr. Krause (senior building inspector) delivered a County computer to Plaintiff's house to accommodate his remote working arrangement. (Sousa Decl. ¶ 9; Krause Decl. ¶¶ 16-19)
- When the COVID shelter-in-place order was lifted, County called its building inspectors back to the office in 2021 and no longer permitted remote work. However, County temporarily exempted Plaintiff from returning to the office and performing onsite building inspections. (Krause Decl. ¶ 20)
- Approximately one and half years later, Plaintiff provided a medical note, dated October 6, 2021, stating his work should be restricted to seated assignments and limited to no more than four hours per day. (Sousa Decl. Ex. F at p. 22)
- County accommodated Plaintiff's reduced working hours and gave him the option of drawing on his accumulated leave banks to retain close to full-time pay while working half-time, or receive leave without pay for the unworked hours. Plaintiff opted to integrate his pay so that he could receive close to full-time pay. (Moslehi Decl. Exhibits N, O)
- On May 11, 2022, Ms. Sousa (management analyst) sent an email to Plaintiff informing him that his leave banks were nearly depleted and since he was still working four hours per day, he would be provided leave without pay for the unworked hours of each day. (Moslehi Decl. Exhibit Q)
- On May 20, 2022, Plaintiff requested a one-year leave of absence for medical reasons to commence on June 24, 2022, and noted that he had been approved for Social Security disability as well. However, Plaintiff's request for leave was rejected when he failed to submit to County the necessary supporting medical documents. (Moslehi Decl. Ex. R; Krause Decl. ¶ 25; Sousa Decl. ¶¶ 19-20)
- A month later, on June 20, 2022, Plaintiff emailed Ms. Sousa a partially completed CalPERS Disability retirement paperwork, listing separation date of June 24, 2022, asking her to complete the employer portion of the application and return it to him. (Moslehi Decl. Ex. S; Sousa Decl. ¶ 21)
- On June 23, 2022, the Deputy Director of Administration sent an email to Plaintiff inquiring if he intended to continue working while his retirement application was pending. Plaintiff did not respond to this email and did not return to work the next day. (Moslehi Decl. Ex. R)
- On June 28, 2022, Mr. Krause contacted Plaintiff to inquire whether he was going to continue performing his agreed restricted work. The next day Plaintiff responded that he was not clear about his employment status. Mr. Krause immediately responded to Plaintiff on June 29, 2022, reiterating that Plaintiff was expected to resume his restricted work on June 30, 2022, and inquired as to why Plaintiff had returned his computer back to the

office workspace. (Moslehi Decl. Ex. U)

- Instead of resuming his work, Plaintiff sent an email to Mr. Krause on June 30, 2022, insisting that he was still unclear about his employment status and demanded a written confirmation on the County's letterhead signed by an approved party. Plaintiff wrote that he was taking a sick day off if he was still considered an employee. (Moslehi Decl. Ex. U)
- On June 30, 2022, Michael Alvarez (a senior manager within the Department of Planning and Development) provided a written confirmation of Plaintiff's employment status under the previously agreed accommodations. Mr. Alvarez additionally noted that since Plaintiff's computer was returned to the County, his telework was rescinded effective July 5, 2022. (Moslehi Decl. Ex. U)
- Plaintiff ceased working for the County since his separation date of June 24, 2022, and has been receiving retirement benefits through CalPERS and social security disability since his separation. (Roll Decl. Exhibits B, E; Parker's deposition transcript pp. 23-27; SSUMF Nos. 29, 33)
- Plaintiff has testified that he has been physically able to perform his job with the County since 2020:

“Q. When you went on the disability retirement from the county, did you feel physically able to perform your job as a building inspector?

A. My ability hadn't changed from, I would say, 2020 up until the time I was terminated. The only thing that's -- that whole delay, the only thing was -- the difference between then and where I am now walking and everything was getting the county to evaluate and provide the evaluation to the physician to do what they needed to do.

Q. So are you able to work as a building inspector today?

A. Yes.”

(Roll Decl. Ex. B, deposition transcript 301:10-16)

On this record, County has met its burden of showing Plaintiff was not subjected to an adverse employment action since he voluntarily applied for and received disability retirement benefits since June 24, 2022. The burden thus shifts to Plaintiff to show triable issues of material fact exist on this issue.

Plaintiff citing *Turner v. Anheuser-Busch, Inc.*, (1994) 7 Cal.4th 1238, contends he was constructively discharged when he was forced to retire. Plaintiff goes on to argue that “communication issues” in late June 2022, retrieval of his home computer on June 29, 2022, and the rescission of his remote working arrangement on June 30, 2022, were the conditions that forced his retirement. (Opposition at 5: 10-20)

In support of his position, Plaintiff points to (1) Mr. Alvarez's testimony that Plaintiff believed he had been told he was being separated and (2) his own testimony about a phone conversation with Ms. Sousa – on an unknown date - in which she allegedly told him that he needed to retire since his vacation banks were exhausted and his last day

on payroll would be June 24, 2022. Plaintiff insists Mr. Alvarez's testimony about his separation belief "fits squarely within *Turner v. Anheuser-Busch, Inc.*, 876 P.2d 1022, 1244-1245 (Cal. 1994), because it supports the inference that the employment relationship was severed by the employer's acts, not by Plaintiff's will." (Opposition at 10:27-11:2) The Court is not persuaded.

First, nowhere in the FAC is Defendant's adverse employment action tied to Plaintiff's alleged forced retirement. Plaintiff does not allege any facts demonstrating a forced retirement and/or a constructive discharge in his FAC and is raising this claim for the first time in his opposition. The FAC merely alleges that the County terminated Plaintiff's employment on June 24, 2022, without any reasoning, due to his race and age. (FAC ¶¶ 20, 23, 24, 40, 43, 45, 57) FAC's only reference to retirement is a one sentence allegation stating "[o]n one occasion, Defendants' employee informed Plaintiff that he 'should just retire'." (FAC ¶ 18)

The allegations of the FAC delimit the scope of the issues on a motion for summary judgment (*Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 648; *Lewinter v. Genmar Industries, Inc.* (1994) 26 Cal.App.4th 1214, 1223 ["In ruling on a summary judgment motion, the issues which are material are limited to the allegations of the complaint."].) Therefore County need address only the issues raised by the FAC. Plaintiff cannot bring up new, unpleaded issues in his opposing papers. To create a triable issue of material fact, the opposition evidence must be directed to issues raised by the pleadings. (See, *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1253; *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444 [since the pleadings define the scope of summary judgment, "[a] party may not oppose a summary judgment motion based on a claim, theory, or defense that is not alleged in the pleadings, and '[e]vidence offered on an unpleaded claim, theory, or defense is irrelevant because it is outside the scope of the pleadings'"].) As such, Defendant's constructive discharge claim cannot serve as a basis to defeat the County's motion.

Second, even if the Court was to consider Plaintiff's constructive discharge argument, he has failed to submit any admissible supporting evidence. The totality of the evidence before the Court, liberally construed in Plaintiff's favor, does not show the existence of a triable issue of material fact in this regard.

"[T]o establish a constructive discharge, an employee must plead and prove . . . that the employer either intentionally created or knowingly permitted working conditions that were so intolerable or aggravated at the time of the employee's resignation that a reasonable employer would realize that a reasonable person in the employee's position would be compelled to resign." (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 826.)

To amount to a constructive discharge, the adverse working conditions must be unusually aggravated or amount to a continuous pattern before the situation will be deemed intolerable. In general, single, trivial, or isolated acts are insufficient to support a constructive discharge claim. (See, *Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1247.)

Additionally, "the standard by which a constructive discharge is determined is an objective one—the question is whether a reasonable person faced with the allegedly intolerable employer actions or conditions of employment would have no reasonable alternative except to quit." (*Turner v. Anheuser-Busch, Inc.*, *supra*, Cal.4th 1238, at 1248.)

Here, Plaintiff fails to submit any evidence showing that retrieval of his computer from his home, rescission of his teleworking, and late June miscommunications created unusually aggravated working conditions or amounted to a continuous intolerable pattern that forced his retirement on June 24, 2022.

More specifically, Plaintiff neither disputes nor provides evidence to refute that (1) the computer was returned to the County sometime after he submitted his retirement application to the County i.e. June 20, 2022, and before June 29, 2022, and (2) it was he who returned his home computer to the County thus creating the condition he now challenges. (SSUMF 20; Warren Krause Decl. ¶ 30.)

Similarly, Plaintiff neither disputes nor provides evidence to refute that he was notified of rescission of his teleworking on June 30, 2022, which was to take effect on July 5, 2022. This notification occurred ten days after Plaintiff submitted his retirement application to the County and six days after he stopped working. (Moslehi Decl., Ex. U) As such, Plaintiff cannot rely on a post-retirement occurrence as a basis for his forced retirement.

Moreover, there is no evidence before the Court that Plaintiff's work restrictions required teleworking. The submitted medical records show that Plaintiff was only restricted to seated work for four hours a day. (Sousa Decl. Ex. F) Indeed in his Response to Request for Reasonable Accommodation, Plaintiff acknowledged conversing with Mr. Krause on May 4, 2020, and affirming that he could either drive or take the train to work in the office once the COVID shelter-in-place order was lifted (Moslehi Decl., Exhibit T; Accommodation Form B attachment, sections (2) and (7).)

The only remaining conceivable adverse condition leading to Plaintiff's constructive discharge is the miscommunications that occurred late June 2022. It is undisputed that Plaintiff emailed his partially filled retirement application to Ms. Sousa, on June 20, 2022, for completion of the employer section. Plaintiff had handwritten June 24, 2022, as his separation date on the application. The application was completed and returned to Plaintiff two days later. It is also undisputed that Plaintiff stopped performing his job for the County on June 24, 2022. (Plaintiff's Opposition to SSUMF Nos. 9, 12, 13, 29; Moslehi Decl., Exhibits R, S, T) Therefore, miscommunications that occurred after his retirement application do not qualify as conditions that lead to his forced retirement.

Plaintiff places singular emphasis on a denied hearsay statement (in a phone conversation) from Ms. Sousa, in June 2020, saying he needed to retire since his vacation banks were exhausted and that June 24, 2022, would be his last day on the payroll. Plaintiff testified in his deposition that it was this statement that caused him to file his

retirement application and list June 24, 2022, as his separation date. (Exhibit 1, at 121:1-5, 121:19-23, 125:4-10, 130:2-15, 132:18-22; see also FAC ¶ 18)

However, a single or isolated act or misstatement of Ms. Sousa, without more, is insufficient to support a constructive discharge claim. (*Turner v. Anheuser-Busch, Inc.*, *supra*, 7 Cal.4th at 1247.) There is no evidence before the Court that Ms. Sousa's alleged comment created intolerable working conditions so adverse that a reasonable employee in Plaintiff's position would have felt compelled to retire. Nor is there any evidence before the Court that a similarly situated reasonable person, with work arrangement that was admittedly sufficient and without issue until he was faced with HR representative's alleged retirement suggestion, would believe he had no reasonable alternative except to retire despite County's confirmation that he retained his full-time employee status. "[T]he standard by which a constructive discharge is determined is an objective one—the question is 'whether a reasonable person faced with the allegedly intolerable employer actions or conditions of employment would have no reasonable alternative except to quit.' [Citation.]" (*Id.* at 1248.)

Therefore, Plaintiff has not produced evidence meeting the transferred burden of showing issues of material fact exists as to an actionable adverse employment. Accordingly, County's motion for summary adjudication of Plaintiff's second cause of action for disability discrimination is GRANTED.

D. Retaliation – Fourth Cause of Action

To establish a *prima facie* case of retaliation under FEHA, a plaintiff must demonstrate that he engaged in a protected activity, the employer subjected him to an adverse employment action, and there was a causal link between the protected activity and the employer's action. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

As concluded in the previous section, Plaintiff was not subjected to an adverse employment action. As such, Plaintiff's retaliation claim fails.

Accordingly, County's motion for summary adjudication of Plaintiff's fourth cause of action for retaliation is GRANTED.

E. Hostile Work Environment – Fifth Cause of Action

To establish a *prima facie* case of a hostile work environment, Plaintiff must show that (1) he is a member of a protected class; (2) he was subjected to unwelcome harassment because of his disability; (3) the harassment was based on his disability; (4) the harassment unreasonably interfered with his work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment. (*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581.)

Harassment must be so severe or pervasive as to alter the conditions of the victim's employment and create an abusive working environment based on the protected

characteristic. (See *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1043.) Harassment must be of a repeated, routine, or generalized nature when the harassing conduct is not severe. Harassment that is occasional, isolated or sporadic is insufficient. (See *Lyle v. Warner Bros. Television Productions* (2006) 38 Cal.4th 264, 283.) "Whether an environment is hostile or abusive can be determined only by looking at all the circumstances. These may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance." (*Jones v. Dep't of Corr. & Rehab.* (2007) 152 Cal.App.4th 1367, 1378; internal citation omitted.)

Furthermore, harassment must satisfy an objective and subjective standard. (*Ortiz v. Dameron Hospital* (2019) 37 Cal.App.5th 568, 582.) The objective severity of harassment should be judged from the perspective of a reasonable person in the plaintiff's position and considering all the circumstances. (*Ibid.*) Subjectively, an employee must perceive the work environment to be hostile. "Put another way, the plaintiff must prove that the defendant's conduct would have interfered with a reasonable employee's work performance and would have seriously affected the psychological well-being of a reasonable employee and that [he] was actually offended." (*Id.* at p. 583; internal citations and quotes omitted].)

Plaintiff alleges Michael Alvarez, Gary Flagg, Warren Krause, Janette Sousa, and Shawn Whitman harassed him "regarding when he would be able to return to work without any modifications. Plaintiff would be asked at least once a month about working without modifications." (FAC ¶ 17)

County contends these comments do not qualify as objectively hostile since (1) they were made in the context of an ongoing interactive process (2) the County accommodated Mr. Parker for over two years—and stated its willingness to continue accommodating Mr. Parker; and (3) Plaintiff testified that he felt able to competently perform his job throughout the time that he was supposedly receiving these comments. (Motion at 23: 19-25)

It is undisputed that County effectively accommodated Plaintiff's restricted work requirements for over two years and the challenged communications were made during this period to check in with Plaintiff about his ongoing limitations and accommodations. It is also undisputed that Plaintiff did not feel the communications interfered with his job or that he was unable to perform his county job at any point while On this record, County has met its burden of showing Plaintiff was not subjected to a hostile work environment. The burden thus shifts to Plaintiff to show triable issues of material fact with this regard.

Plaintiff contends "[a]n employee who believes he is being separated from his position, and then learns management will not meet with him face-to-face to resolve the dispute while he is still employed, can reasonably experience that conduct as isolating, humiliating, and threatening to the basic conditions of employment." (Opposition at 17:9-13) In support of his position, plaintiff points to testimony of Mr. Alvarez about Plaintiff's separation belief as it relates to his discrimination claim and HR's instruction not to bring Plaintiff in for a face-to-face meeting to resolve the retirement issues. (Opposition 17: 9-

13)

However, case law has differentiated between conduct which constitutes "discrimination" and conduct which constitutes "harassment." As explained by the California Supreme Court in *Reno v. Baird* (1998) 18 Cal.4th 640, "[h]arassment is not conduct of a type necessary for management of the employer's business or performance of the supervisory employee's job." (*Id.* at 645) Actions of a type necessary to carry out the duties of business and personnel management may retrospectively be found discriminatory if based on improper motives, but in that event the remedies provided by the FEHA are those for discrimination, not harassment. Harassment, by contrast, consists of actions outside the scope of job duties which are not of the type necessary to business and personnel management." (See, *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 65 [cited with approval in *Reno v. Baird*, *supra*, 18 Cal.4th at 646-647.])

Here, Plaintiff does not dispute nor submit any evidence refuting that the challenged communications were not necessary to carry out County's interactive process to accommodate Plaintiff's medical restriction. Nor does Plaintiff dispute or offer evidence that the communications interfered with his job. On the contrary, Plaintiff has indeed testified that at no point he was unable to perform his county job while employed. (SSUMF 49)

Therefore, Plaintiff has not produced evidence meeting the transferred burden of showing issues of material fact exists as to a hostile working environment. Accordingly, County's motion for summary adjudication of Plaintiff's fifth cause of action for hostile work environment is GRANTED.

F. Failure to Prevent Discrimination, Harassment, or Retaliation – Sixth Cause of Action

This claim is derivative of Plaintiff's discrimination, hostile work environment, and retaliation claim. "An actionable claim under section 12940, subdivision (k) is dependent on a claim of actual discrimination: Employers should not be held liable to employees for failure to take necessary steps to prevent such conduct, except where the actions took place and were not prevented." *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1021, internal citation and quotes omitted; see also *Dickson v. Burke Williams, Inc.* (2015) 234 Cal. 1307, 1317-18.)

The Court has already concluded that Plaintiff's claims for discrimination, hostile work environment, and retaliation are subject to summary adjudication in favor of the County. As such, this derivative claim also fails.

Accordingly, County's motion for summary adjudication of Plaintiff's sixth cause of action for failure to prevent discrimination, harassment, or retaliation is GRANTED.

G. Failure to Make Reasonable Accommodations and Engage in the Interactive Process.

The FAC does not include separate causes of action for these claims. Instead, Plaintiff admittedly "alleged under his second cause of action for disability discrimination

that Defendants violated Government Code section 12940(m) and 12940(n) by ‘failing to provide reasonable accommodations’ and ‘failing to engage in the interactive process’’. (Opposition at 13:18-21; FAC ¶¶ 31,31)

County contends that since Plaintiff has not alleged separate causes of action relating to any failure to accommodate or engage in the interactive process, the Court should grant its motion for summary judgment without reaching these un-alleged claims. (Motion at 17: 6-8)

Claims for failure to provide reasonable accommodations and failure to engage in the interactive process are independent violations of FEHA that represent separate and distinct unfair employment practices distinct and detached from a general claim of discrimination under Gov. Code section 12940(a). (See, *Miller v. Department of Corrections & Rehabilitation*, (2024) 105 Cal. App. 5th 261, 274, internal citations and quotes omitted; Gov. Code § 12940, subds. (a), (m)(1), and (n); See also *Vines v. O'Reilly Auto Enterprises, LLC* (2022) 74 Cal.App.5th 174, 185.) Nonetheless, in the interest of justice, the Court will address these claims.

The “FEHA requires employers to make reasonable accommodation for the known disability of an employee unless doing so would produce undue hardship to the employer's operation.” (*Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 373; Gov. Code § 12940, subd. (m)(1).) “Reasonable accommodations include job restructuring, part-time or modified work schedules, reassignment to a vacant position and other similar accommodations for individuals with disabilities. (*Miller v. Department of Corrections & Rehabilitation*, supra, 105 Cal. App. 5th at 277, internal quotes and citations omitted.)

The purpose of the interactive process is to determine what accommodation is required. Thus, an “employer cannot be held liable for failing to engage in [the] interactive process when the employee was in fact offered a reasonable accommodation.” (*Wilson v. County of Orange* (2009) 169 Cal.App.4th 1185, 1195; see (*Hanson v. Lucky Stores, Inc.* (1999) 74 Cal.App.4th 215, 229 [there is “no reason why [an] employer should be subjected to liability for failing to engage in the interactive process where the employee was reasonably accommodated”].)

Here, Plaintiff contends that rescission of his remote working arrangement on June 30, 2022, tantamount to the County’s refusal to provide accommodation that was effective and reasonable. (Opposition at 4: 12-17; 13:24-14:22) The Court is unpersuaded.

It is undisputed that (1) County accommodated Plaintiff’s medical restrictions by removing him from field inspections, assigned him computer-based duties that he could perform seated, limited his work to four-hours a day, and allowed him to continue work remotely after COVID shelter-in-place order was removed; (2) rescission of Plaintiff’s remote working arrangement occurred after he submitted his retirement application to the County, after he stopped working, and after Plaintiff returned his home computer to the County himself; (3) County offered to continue accommodating Plaintiff with 4-hours a day seated work even after Plaintiff stopped working; (4) Plaintiff’s medical records do

not impose a teleworking restriction and only restrict Plaintiff to work seated and for four-hours a day; and (4) Plaintiff in his Response to Reasonable Accommodation Form B expressed his ability to work from office once the COVID shelter-in-place order was lifted. (SSUMF 4, 5, 17, 19, 22, 24, 42-49.)

On this record, County cannot be held liable for failing to engage in the interactive process and/or failing to provide reasonable accommodation when Plaintiff was in fact offered the accommodation his medical providers instructed. The FEHA does not obligate the County to choose the specific accommodation Plaintiff seeks i.e. teleworking, as long as the accommodation chosen and provided is reasonable. (See, *Miller v. Department of Corrections & Rehabilitation*, supra, 105 Cal. App. 5th at 281.)

Accordingly, County's motion for summary adjudication of Plaintiff's claims for failure to make reasonable accommodation or engage in interactive process is GRANTED.

VI. Conclusion

Based on the foregoing, County's motion for summary judgment against Plaintiff's first amended complaint is GRANTED.

SO ORDERED.

Date: _____

Hon. Lori E. Pegg
Superior Court of the State of California,
County of Santa Clara

Line 3

Case Name: *John Diep, M.D., et al. v. Phu Vo, et al.*

Case No.: 24CV442489

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Phu Vo ("Vo") moves to strike the entirety of the Complaint of Plaintiffs John Diep, M.D. and John Diep Medical Corporation, dba Medical Hair Transplant & Aesthetics (collectively, Plaintiffs") under the California anti-SLAPP statute, California

Civil Procedure Code Section 425.16. Notice of Motion (the “Motion”) at 2:4-10 (filed: Oct. 30, 2025).

The Motion came on for hearing on June 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiffs John Diep, M.D. (“Diep”) and John Diep Medical Corporation, dba Medical Hair Transplant & Aesthetics (“JDMC”) (together, “Plaintiffs”) filed this action against defendant Phu Vo (“Vo”). Vo now brings a special motion to strike under Code of Civil Procedure section 425.16.

I. SPECIAL MOTION TO STRIKE

A. General Legal Standards

Code of Civil Procedure section 425.16 authorizes a person to bring a special motion to strike allegations “arising from any act . . . in furtherance of [their] right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue.” (Code Civ. Proc., § 425.16, subd. (b)(1).) This is commonly referred to as an “anti-SLAPP” motion.

Courts evaluate anti-SLAPP motions using a two-step analysis. (*Country Side Villas Homeowners Assn. v. Ivie* (2011) 193 Cal.App.4th 1110, 1116.) “First, the moving defendant must identify ‘all allegations of protected activity’ and show that the challenged claim arises from that activity. [Citations.]” (*Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 934.) “Second, if the defendant makes such a showing, the ‘burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated.’ [Citation.] Without resolving evidentiary conflicts, the court determines ‘whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment.’ [Citation.]” (*Ibid.*)

B. First Step: Protected Activity

“A defendant meets his or her burden on the first step of the anti-SLAPP analysis by demonstrating the acts underlying the plaintiff’s cause of action fall within one of the four categories spelled out in [Code of Civil Procedure] section 425.16, subdivision (e). [Citations.]” (*Collier v. Harris* (2015) 240 Cal.App.4th 41, 50-51.) Examples of protected speech include:

(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).)

“In deciding whether the ‘arising from’ requirement is met, a court considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’ [Citations.]” (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 670.)

The court finds that Code of Civil Procedure section 425.16, subdivisions (e)(3) and (4) apply to the statements at issue here. First, the court agrees with Vo’s point that statements “posted on internet sites are writings made in a public forum within the meaning of [Code of Civil Procedure section] 425.16(e)(3).” (Memorandum of Points and Authorities in Support of Anti-SLAPP Motion (“MPA”), p. 5:15-23; see *Barrett v. Rosenthal* (2006) 40 Cal.4th 33, 41, fn. 4 [“Web sites accessible to the public, like the ‘newsgroups’ where Rosenthal posted Bolen’s statement, are ‘public forums’ for purposes of the anti-SLAPP statute.”], internal citations omitted.) Nor do Plaintiffs attempt to dispute this point in their opposition. Instead, they argue that Vo “recasts his statements as a review of physician [sic] and therefore in the public interest. But the actionable statements were not taken from Vo’s reviews of Dr. Diep.” (Opposition to Vo’s Anti-SLAPP Motion (“Opposition”), p. 11:21-24.)

The court disagrees and struggles to see how whether if the “actionable statements were not taken from Vo’s review of Dr. Diep” and instead were “hijacked” internet posts has any bearing on the court’s analysis. (Opposition, pp. 11:21-12:4.) Nor is the court persuaded by Plaintiffs’ attempts to distinguish *Yang v. Tenet Healthcare Inc.* (2020) 48 Cal.App.5th 939 (*Yang*). In *Yang*, the plaintiff Yang sued a hospital, its medical staff, and individual doctors for falsely stating to “healthcare providers,” “medical practices,” Yang’s “patients,” and “members of the general public” that Yang did not have privileges for certain procedures. (*Yang, supra*, 48 Cal. App. 5th at p. 943.) The defendants in *Yang* also allegedly told these people that Yang “rendered care below applicable standards of practice,” that “[h]er behavior and medical ethics were below applicable standards,” that she was not “qualified or competent to practice her specialties,” that she was “dangerous to [her] patients and to employees and members” of the hospital’s medical staff, and that she was “under investigation.” (*Ibid.*) The defendants in *Yang* argued that these statements “were made in furtherance of the exercise of the right of free speech in connection with a public issue or an issue of public interest,” citing Code of Civil Procedure section 425.16, subdivision (e)(4). (*Id.* at p. 944.)

The Court of Appeal in *Yang* found that Code of Civil Procedure section 425.16, subdivision (e)(4) applied to the statements at issue. (*Yang, supra*, 48 Cal. App. 5th at p. 949.) The allegations that defendants informed Yang’s patients and the general public that “she was generally unqualified, as well as [a defendant’s] statement that the hospital had directed several doctors to ‘no longer refer patients’ to Yang,” contributed to a public issue because these statements “were communicated to the public, not just to discrete doctors or hospital staff members” and the “hospital’s directive that doctors should no longer refer patients to Yang is similar to a statement made by a third party to aid and protect consumers.” (*Id.* at p. 948.) Statements “aimed at protecting members of the public who might see a doctor are sufficiently broadly applicable.” (*Id.* at p. 949.)

Thus, under *Yang*, the issue is whether Vo’s alleged statements “were communicated to the public” and “made by a third party to aid and protect consumers,” not whether Vo “had a duty to inform” or “hijacked other user’s posts.” Given this, the court is not persuaded by Plaintiffs’ arguments as to the first prong of the anti-SLAPP statute and finds that Vo’s alleged statements regarding the treatment he received from Plaintiffs are protected speech under Code of Civil Procedure section 425.16, subdivision (e). (See *Yang, supra*, 48 Cal.App.5th at pp. 948-949; *Healthsmart Pacific, Inc. v. Kabateck* (2016) 7 Cal.App.5th 416, 429 [“[M]embers of the public, as consumers of medical services, have an interest in being informed of issues concerning particular doctors and health care facilities. [Citations.]”]; *Carver v. Bond* (2005) 135 Cal.App.4th 328, 344 [“The article warned readers not to rely on doctors’ ostensible experience treating professional athletes, and told what it described as ‘a cautionary tale’ of plaintiff exaggerating that experience to market his practice. Since the statements at issue served as a warning against plaintiff’s method of self-promotion, and were provided along with other information to assist patients in choosing doctors, the statements involved a matter of public concern.”], internal citation omitted.)

For the reasons discussed above, the court concludes that Vo has satisfied the first prong of the anti-SLAPP statute.

C. Second Step: Probability of Prevailing

The court now turns to whether Plaintiffs have demonstrated a probability of the first amended complaint’s (“FAC”)² causes of action prevailing, the second step in an anti-SLAPP analysis. A plaintiff meets its burden of showing a probability of prevailing by demonstrating “that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (*Soukop v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291 (*Soukop*), internal citations and quotation marks omitted.) This “probability of prevailing” standard is similar to the standard governing a motion for summary judgment in that it is the plaintiff’s burden to make a prima facie showing of facts that would support a judgment in the plaintiff’s favor. (*Taus v. Loftus* (2007) 40 Cal.4th 683, 714.) Stated differently, the “plaintiff need only establish that his or her claim has ‘minimal merit’ to avoid being stricken as a SLAPP.” (*Soukup, supra*, 39 Cal.4th at p. 291, internal citations omitted.)

A plaintiff must show that there is admissible evidence that, if credited, would be sufficient to sustain a favorable judgment. (*McGarry v. University of San Diego* (2007) 154

² The court notes that Plaintiffs filed an amended complaint after Vo filed a special motion to strike the initial complaint. Technically, the filing of the FAC rendered Vo’s anti-SLAPP motion moot. (*JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477.) However, in the interest of judicial economy and because Plaintiffs oppose the motion on its substantive merits, the court will treat Vo’s motion to strike as though it is directed at the FAC.

Cal.App.4th 97, 108.) While the burden on the second prong belongs to the plaintiff, in determining whether a party has established a probability of prevailing on the merits of his or her causes of action, a court considers not only the substantive merits of those causes of action, but also all defenses available to them. (*Traditional Cat Assn., Inc. v. Gilbreath* (2004) 118 Cal.App.4th 392, 398.) Affidavits or declarations not based on personal knowledge, or that contain hearsay or impermissible opinions, or that are argumentative, speculative or conclusory, are insufficient to show a “probability” that the plaintiff will prevail. (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 26.)

1. Defamation

“The elements of a defamation cause of action are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage. [Citation.]” (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1369 (*Wong*).) The question of whether the challenged statements convey the requisite factual imputation is ordinarily a question of law for the court. (*Kahn v. Bower* (1991) 232 Cal.App.3d 1599, 1608.) But some statements are ambiguous and cannot be characterized as factual or nonfactual as a matter of law. (*Ibid.*) Under these circumstances, it is for the jury to determine whether an ordinary reader would have understood the statements as a factual assertion. (*Ibid.*)

The court disagrees with Vo’s argument that all of the alleged defamatory statements are “hyperbolic opinion.” (MPA, pp. 10:24-12:19.) “The sine qua non of recovery for defamation . . . is the existence of falsehood. Because the statement must contain a provable falsehood, courts distinguish between statements of facts and statements of opinion for purposes of defamation liability. Although statements of fact may be actionable as [defamatory], statements of opinion are constitutionally protected.” (*McGarry v. University of San Diego* (2007) 154 Cal.App.4th 97, 112, internal citations and quotation marks omitted.) “The critical question is not whether a statement is fact or opinion, but whether a reasonable fact finder could conclude the published statement declares or implies a provably false assertion of fact.” (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1370, internal citations and quotations omitted.)

Here, the FAC alleges that, among other statements, Vo stated “Diep is paying Google big big \$\$\$ so the SEO . . .” (FAC, ¶ 25; see also MPA, p. 2:20.) This statement is reasonably susceptible to a defamatory interpretation and cannot be characterized as “mere opinion” as a matter of law. Whether Diep paid Google to ensure that the “reality” of his work did not get displayed on the internet could potentially be a provably false assertion of fact. Moreover, Diep has submitted evidence to the court that Vo “published” this statement and Diep has never paid Google “big big \$\$\$” to ensure that Diep’s work “does not get displayed.” (Declaration of John Diep in Support of Opposition to Vo’s Anti-SLAPP Motion, ¶ 13 (“Diep Decl.” or “Diep Declaration”); Declaration of Bonnie Ross in Support of Opposition to Anti-SLAPP Motion, Ex. G; Declaration of Alexander Sappington in Support of Opposition to Anti-SLAPP Motion, ¶¶ 2-14 [“Page Vault provided Captures of relevant content for our client, Bonnie Margaret Ross, and provided both the PDF and html files of each Capture. . . .”].) Such allegations and evidence are sufficient to establish the elements of a falsity, contrary to Plaintiffs’ arguments otherwise.

The court turns to the issue of damages. Slander and libel are two types of defamation. (See Civ. Code, § 44.) Slander is a false and unprivileged publication, orally uttered, which: (1) charges any person with crime, or with having been indicted, convicted, or punished for crime; (2) imputes in any person the present existence of an infectious, contagious, or loathsome disease; (3) tends directly to injure a person in respect to their office, profession, trade or business, either by imputing to them general disqualification in those respects which the office or other occupation peculiarly requires, or by imputing something with reference to their office, profession, trade, or business that has a natural tendency to lessen its profits; (4) imputes impotence or a want of chastity; or (5) which, by natural consequence, causes actual damage. (Civ. Code, § 46.) “A slander that falls within the first four subdivisions of Civil Code section 46 is slander per se and requires no proof of actual damages. A slander that does not fit into those first four subdivisions is slander per quod, and special damages are required for there to be any recovery for that slander.” (*Regalia v. Nethercutt Collection* (2009) 172 Cal.App.4th 361, 367, internal citations omitted.)

The court disagrees with Vo that each of the statements allegedly made by Vo constitute defamation “per quod.” For example, the court finds that the statement “Diep is paying Google big big \$\$\$ so the SEO . . .” qualifies as libelous on its face. (FAC, ¶ 25; see Civ. Code § 45a [“A libel which is defamatory of the plaintiff without the necessity of explanatory matter, such as an inducement, innuendo or other extrinsic fact, is said to be a libel on its face. Defamatory language not libelous on its face is not actionable unless the plaintiff alleges and proves that he has suffered special damages as a proximate result thereof. Special damages are defined in Section 48a of this code.”].) Plaintiffs do not need to prove actual damages to support such a claim. (See *Contento v. Mitchell* (1972) 28 Cal.App.3d 356, 358 [“[I]t is equally well-settled that in an action for damages based on language defamatory per se, damage to plaintiff’s reputation is conclusively presumed and he need not introduce any evidence of actual damages in order to obtain or sustain an award of damages.”].)

The court DENIES Vo’s special motion to strike the FAC’s first cause of action for defamation.

2. Trade Libel

“Trade libel is the publication of matter disparaging the quality of another’s property, which the publisher should recognize is likely to cause pecuniary loss to the owner. The tort encompasses all false statements concerning the quality of services or product of a business which are intended to cause that business financial harm and in fact do so. To constitute trade libel, a statement must be false.” (*City of Costa Mesa v. D’Alessio Investments, LLC* (2013) 214 Cal.App.4th 358, 376, internal citations and quotation marks omitted.) Unlike “a claim for defamation, trade libel requires as an essential element that the plaintiff suffered direct financial harm because someone else acted in reliance on the defendant’s statement. To establish this element, is [sic] not enough to show a general decline in [plaintiff’s] business resulting from the falsehood, even where no other cause for it is apparent, . . . it is only the loss of specific sales that can be recovered. This means, in the usual case, that the plaintiff must identify the particular purchasers who have refrained from dealing with him, and specify the transactions of which he

claims to have been deprived.” (*Muddy Waters, LLC v. Superior Court* (2021) 62 Cal.App.5th 905, 925 (*Muddy Waters*), internal citations and quotation marks omitted.)

Plaintiffs have not submitted to the court any evidence showing that they have suffered a specific loss as a result of any alleged statement made by Vo. Instead, the Diep Declaration identifies a reduced number of patient visits and states generally that “a number of our patients informed us that they cancelled their planned procedures with the clinic . . .” (Diep Decl., ¶¶ 70-73.) For this reason, the court finds that Plaintiffs have failed to establish a probability of prevailing on the FAC’s trade libel cause of action. (See *Muddy Waters, supra*, 62 Cal.App.5th at p. 925-926 [“Thus, the existence of a specific customer or business entity that refrained from dealing with plaintiff as a result of reliance on the Dupré Reports is an essential factual element of plaintiff’s cause of action for trade libel. Plaintiff has not directed us to any evidence in the record identifying any such customer or other business entity, let alone any specific contract or sale that it claims was lost as a result of the Dupré Reports.”].)

The court GRANTS Vo’s special motion to strike the FAC’s second cause of action for trade libel.

3. Intentional Interference with Prospective Relations

“The elements of intentional interference with prospective economic advantage are: ‘(1) the existence, between the plaintiff and some third party, of an economic relationship that contains the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) intentionally wrongful acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm proximately caused by the defendant’s action.’” (*Golden Gate Land Holdings, LLC v. Direct Action Everywhere* (2022) 81 Cal.App.5th 82, 91, internal citation and quotation marks omitted.) “[A] plaintiff that wishes to state a cause of action for [intentional interference with prospective economic advantage] must allege the existence of an economic relationship with some third party that contains the probability of future economic benefit to the plaintiff. An actual economic relationship with a third party is required, and liability cannot be premised on the more speculative expectation that a potentially beneficial relationship will arise in the future.” (*Muddy Waters, supra*, 62 Cal.App.5th at p. 926, internal citations and quotation marks omitted.)

Here, Plaintiffs do not direct the court to any evidence identifying a specific third party with whom Plaintiffs had an existing economic relationship. (*Muddy Waters, supra*, 62 Cal.App.5th at pp. 926-927 [“Here, none of the evidence submitted by plaintiff identified a specific third party with whom plaintiff had an existing economic relationship, let alone a relationship that had the probability of future economic benefit. . . . [I]n the context of a special motion to strike, once Muddy Waters established that the plaintiff’s claims arose from protected activity under section 425.16, the burden shifted to plaintiff to produce evidence to show a probability of prevailing on the merits. Therefore, it was incumbent on plaintiff to produce evidence to show a specific economic relationship with the prospect of future economic advantage. . . .”].)

For this reason, the court GRANTS Vo's special motion to strike the FAC's third cause of action for intentional interference with prospective relations.

4. Negligent Interference with Prospective Relations

"The tort of negligent interference with prospective economic advantage is established where a plaintiff demonstrates that (1) an economic relationship existed between the plaintiff and a third party which contained a reasonably probable future economic benefit or advantage to plaintiff; (2) the defendant knew of the existence of the relationship and was aware or should have been aware that if it did not act with due care its actions would interfere with this relationship and cause plaintiff to lose in whole or in part the probable future economic benefit or advantage of the relationship; (3) the defendant was negligent; and (4) such negligence caused damage to plaintiff in that the relationship was actually interfered with or disrupted and plaintiff lost in whole or in part the economic benefits or advantage reasonably expected from the relationship." (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 786 (*North American Chemical*), internal citation omitted.)

Similar to a cause of action for intentional interference with prospective relations, negligent interference with prospective relations requires "an economic relationship" that "existed between the plaintiff and a third party which contained a reasonably probable future economic benefit or advantage to plaintiff." (*North American Chemical, supra*, 59 Cal.App.4th at p. 786.) Similarly, then, "liability cannot be premised on the more speculative expectation that a potentially beneficial relationship will arise in the future." (*Muddy Waters, supra*, 62 Cal.App.5th at p. 926.) Again, the court notes that Plaintiffs do not identify in the evidence submitted to the court a specific third party with whom Plaintiffs had an existing economic relationship.

The court GRANTS Vo's special motion to strike the FAC's fourth cause of action for negligent interference with prospective relations.

5. Intentional Infliction of Emotional Distress

"A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. A defendant's conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. And the defendant's conduct must be intended to inflict injury or engaged in with the realization that injury will result. Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. . . . With respect to the requirement that the plaintiff show emotional distress, this court has set a high bar. Severe emotional distress means emotional distress of such a substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051 (*Hughes*), internal quotations and citations omitted,

disapproved on another ground in *Wawrzewski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 699.)

“[T]he trial court initially determines whether a defendant’s conduct may reasonably be regarded as so extreme and outrageous as to permit recovery. Where reasonable men can differ, the jury determines whether the conduct has been extreme and outrageous to result in liability. Otherwise stated, the court determines whether severe emotional distress can be found; the jury determines whether on the evidence it has, in fact, existed.” (*Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, 1614, internal citation and quotation marks omitted.)

Vo’s allegedly defamatory statements, which appear to form the basis for the FAC’s intentional infliction of emotional distress cause of action, do not show extreme and outrageous conduct. (FAC, ¶¶ 99-107.) The court reiterates that liability “for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” (*Hughes, supra*, 46 Cal.4th at p. 1051.) Plaintiffs have not met their burden on this cause of action.

The court GRANTS Vo’s special motion to strike the FAC’s fifth cause of action for intentional infliction of emotional distress.

6. California’s Unfair Competition Law (“UCL”)

“A UCL action is an equitable action by means of which a plaintiff may recover money or property obtained from the plaintiff or persons represented by the plaintiff through unfair or unlawful business practices. It is not an all-purpose substitute for a tort or contract action.” (*Muddy Waters, supra*, 62 Cal.App.5th at p. 922, internal citation and quotation marks omitted.) “[O]nly plaintiffs who have suffered actual damage may pursue a private UCL action. A private plaintiff must make a twofold showing: he or she must demonstrate injury in fact *and* a loss of money or property caused by unfair competition.” (*Ibid.*, internal quotation marks and citation omitted, emphasis original.)

Similar to the court’s reasoning for granting Vo’s anti-SLAPP motion as to the FAC’s third and fourth causes of action, Plaintiffs direct the court to no specific evidence substantiating the damages allegations underlying the FAC’s UCL allegations or Diep’s statement in his declaration that as a result of Vo’s conduct, Diep has “lost more than \$9.5 million.” (FAC, ¶¶ 108-113; Diep Decl., ¶ 73; see *Muddy Waters, supra*, 62 Cal.App.5th at pp. 923-924 [“Here, nothing in the record suggests that plaintiff has lost money or property such that it would have standing to pursue a UCL action against Muddy Waters. While the complaint alleged that aluminum pallets were detained by the United States as a result of the allegations made in the Dupré Reports, plaintiff failed to produce any evidence to support this allegation when called to do so in opposition to the special motion to strike. . . . Nor has plaintiff suggested, let alone produced, any evidence of any other money or property lost . . .”].) Furthermore, the court agrees with Vo’s point that much of the evidence discussed in paragraphs 70 through 72 of the Diep Declaration constitutes hearsay. (See Reply in Support of Anti-SLAPP Motion, p. 9:9-15; *People v. Flinner* (2020) 10 Cal.5th 686, 735 [“Hearsay is an out-of-court statement offered for the truth of the matter asserted and is generally inadmissible.”].) For example, the Diep

Declaration states that prospective “patients who had consultations have told us that they decided not to book surgeries after seeing Phu Vo’s negative comments.” (Diep Decl., ¶ 70; see also *id.* at ¶ 71 [“A number of prospective hair transplant patients have stated on the hair transplant forums that, as a result of Mr. Vo’s disparagement of me and my clinic, they decided not to have hair transplant procedures done at my clinic.”].)

The court GRANTS Vo’s special motion to strike the FAC’s sixth cause of action.

II. Attorney’s Fees

The “prevailing defendant” on a motion to strike “shall be entitled” to recover their attorney fees and costs. (Code Civ. Proc., § 425.16, subd. (c).) Any “SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) A defendant’s lack of success on some claims or causes of action is relevant to the amount of, but not the right to, fees. (*Jackson v. Yarbray* (2009) 179 Cal.App.4th 75, 92.) Because Vo’s motion was granted in part, Vo may be entitled to recover fees and costs associated with bringing the motion, but because the motion is not accompanied by any declaration regarding fees and costs, the court will reserve on the issue until such time as it is adequately presented to the court (if the parties elect to do so).

III. Conclusion

The court GRANTS Vo’s special motion to strike the FAC’s second, third, fourth, fifth, and sixth causes of action. The court DENIES Vo’s special motion to strike the FAC’s first cause of action.

SO ORDERED.

Date: June 26, 2026

Hon. Lori E. Pegg
Superior Court of the State of California,
County of Santa Clara

Line 4

Case Name: *Terry Kwong, et al. v. Elaine Yang, et al.*

Case No.: 24CV445397

See ORDER above. (Terry Kwong’s Motion to Compel Further Amended and Verified Responses to Form Interrogatories, Requests for Admissions, Requests for Production of

Special Interrogatories from Defendant/Cross-Complainant Elain Yang has been continued by stipulation and court order to July 31, 2026 at 9:00 a.m. in Department 16.)

Date: June 26, 2026

Hon. Lori E. Pegg
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Argent Investments LLC v. Ye Rang Choi, et al.*

Case No.: 25CV468257

See ORDER above. (Cross-Defendants' Motion to Strike is STAYED pending completion of appeal).

Date: June 26, 2026

Hon. Lori E. Pegg
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *Jason S. Fox, et al. v. Shelita Law, et al.*

Case No.: 25CV474454

See ORDER above. (Defendant Shelita Law's Demurrer is STAYED pending completion of arbitration).

Date: June 26, 2026

Hon. Lori E. Pegg
Superior Court of the State of California,
County of Santa Clara

Line 7

Case Name: *Darnell Johnson v. Narinder Bains, et al.*

Case No.: 25CV476451

See ORDER above. This motion is not properly before the court and today's matter is vacated.

SO ORDERED.

Date: June 26, 2026

Hon. Lori E. Pegg
Superior Court of the State of California,
County of Santa Clara